

Court No. - 29

Case :- WRIT - C No. - 42247 of 2009

Petitioner :- Ganesh Agrawal

Respondent :- U.P. Power Corporation Ltd. And Others

Petitioner Counsel :- S.K. Pandey,R.K. Pandey

Respondent Counsel :- C.S.C.,Mridul Tripathi

Hon'ble Satya Poot Mehrotra,J.

Hon'ble Pankaj Mithal,J.

As prayed, put up as fresh on 27.8.2009.

Order Date :- 25.8.2009

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Hon'ble Satya Poot Mehrotra, J.

Hon'ble Pankaj Mithal, J.

Smt. Mridul Tripathi, learned counsel for the respondent no. 4 has obtained instructions in the matter. She states that the checking in the present case was done on 18.12.2007. Provisional assessment was sent by Registered Post on 28.12.2007. Final assessment was made on 9.1.2008 as per Annexure-3 to the Writ Petition.

Learned counsel for the petitioner submits that as per the provisions contained in Clause 6.8 (b) (i) of the U.P. Electricity Supply Code, 2005, the Assessment Officer is required to serve provisional assessment bill along-with show-cause-notice to the consumer giving 15 working days for submission of reply.

It is submitted that in the present case, even if the time is counted from the date of dispatch of provisional assessment by Registered Post on 28.12.2007, the final assessment has been done prior to the expiry of 15 days. Thus, the requirements of Clause 6.8 (b) (i) of the U.P. Electricity Supply Code, 2005, have not been complied with in the present case.

The matter requires consideration.

Issue notice pending admission.

Notice on behalf of the respondent nos. 2 and 3 has been accepted by the learned Standing Counsel.

Notice on behalf of the respondent no.4 has been accepted by Smt. Mridul Tripathi.

Notice will be issued to the respondent no.1 fixing next date fixed in the matter.

Counter affidavits on behalf of the respondents may be filed within three weeks.

Rejoinder affidavit may be filed by the next date fixed in the matter.

List this case on 30th September, 2009.

Heard on the question of grant of interim relief.

Having regard to the facts and circumstances of the case and having considered the submissions made by the learned counsel for the parties, it is directed that the recovery pursuant to the impugned Recovery Citation dated 28.7.2009 (Annexure-5 to the Writ Petition) will remain stayed till the next date of listing.

It will, however, be open to the respondent no. 4 to give fresh show-cause notice to the petitioner along-with a copy of the provisional assessment in accordance with the requirements of the U.P. Electricity Supply Code, 2005 and pass appropriate orders in accordance with law.

Order Date :- 27.8.2009

Ajeet

Court No. - 21

Case :- WRIT - C No. - 42247 of 2009

Petitioner :- Ganesh Agrawal

Respondent :- U.P. Power Corporation Ltd. And Others

Counsel for Petitioner :- S.K. Pandey,R.K. Pandey

Counsel for Respondent :- C.S.C.,Mridul Tripathi

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Syed Qamar Hasan Rizvi,J.

Case called out in the revised list.

None appears on behalf of the petitioner to press this petition.

The petition is dismissed for want of prosecution.

Order Date :- 22.2.2023

Arif

(Syed Qamar Hasan Rizvi,J.) (Manoj Kumar Gupta,J.)